

**IN THE LABOUR COURT OF SOUTH AFRICA
HELD AT CAPE TOWN**

CASE NO: [To be assigned]

In the matter between:

WILBUR WILLIAM MATTHEE

Applicant

and

MEDSCHEME HOLDINGS (a Division of Afrocentric Health (Pty) Ltd)

Respondent

FOUNDING AFFIDAVIT

PART A: STATUTORY FRAMEWORK

This affidavit is grounded in, and each claim herein is anchored to, the following legislative framework applicable in the Republic of South Africa. Where facts are averred, the relevant statutory provision governing that averment is identified at the outset of each material paragraph or section.

A1. Labour Relations Act 66 of 1995 (LRA)

STATUTORY BASIS: LRA s187(1)(h) — *A dismissal is automatically unfair if the employer, in dismissing the employee, acts contrary to section 5 of the LRA, or if the reason for dismissal is that the employee made a protected disclosure as defined in the Protected Disclosures Act 26 of 2000.*

The Applicant submits that his constructive dismissal on 12 December 2025 was automatically unfair in terms of section 187(1)(h) of the LRA, the dominant reason

being the Respondent's sustained retaliation against the Applicant for making protected disclosures.

STATUTORY BASIS: LRA s186(1)(e) — *Constructive dismissal arises where an employee terminates employment with or without notice because the employer made continued employment intolerable.*

The Applicant further relies on section 186(1)(e) of the LRA, submitting that the cumulative effect of the Respondent's conduct — as fully particularised in Part B hereof — rendered continued employment objectively intolerable.

STATUTORY BASIS: LRA s186(2)(a) — *An unfair labour practice includes any unfair act or omission that arises between an employer and an employee involving the unfair conduct of the employer relating to the promotion, demotion, probation, training, or the provision of benefits of an employee.*

The Applicant further relies on section 186(2)(a) in respect of the Respondent's unlawful deductions and its failure to provide reasonable accommodation as constituting unfair conduct relating to benefits.

A2. Basic Conditions of Employment Act 75 of 1997 (BCEA)

STATUTORY BASIS: BCEA s34(1) — *An employer may not make deductions from an employee's remuneration unless agreed in writing and relates to a debt specified in the agreement, or is required or permitted by law.*

The Applicant avers that the deduction of R14,811.77 effected in July 2025, representing 40.47% of gross remuneration, was made without the Applicant's prior written consent and in direct contravention of section 34(1) of the BCEA. No written deduction agreement existed.

STATUTORY BASIS: BCEA s34(2) — *A deduction for overpayment of remuneration may not exceed one-quarter of the employee's remuneration in money.*

The Respondent's own internal policy mirrored this legislative protection. Despite this, the Respondent knowingly exceeded the 25% cap, as evidenced by the Teams communication of 24 July 2025 in which line manager Ms. Jones acknowledged but dismissed the statutory limit.

A3. Protected Disclosures Act 26 of 2000 (PDA)

STATUTORY BASIS: PDA s1 — Definition of Occupational Detriment — *Includes being subjected to any disciplinary action; dismissed; suspended; demoted; harassed or intimidated; transferred; refused transfer or promotion; subjected to a term or condition of employment that disadvantages the employee; or being otherwise adversely affected in respect of employment, profession, or office.*

The Applicant avers that the Respondent subjected him to occupational detriment as defined in section 1 of the PDA in direct response to multiple protected disclosures, including: disclosure of duplicate LACE file inefficiencies (March 2025); the

Gexus/DMS patient safety failure (October 2025); and the P1 Material Risk Report to the Board (December 2025).

STATUTORY BASIS: PDA s3 — *No employee may be subjected to an occupational detriment by his or her employer on account of having made a protected disclosure.*

Each act of financial victimisation, disciplinary threat, hostile management conduct, and the defamatory opposing affidavit of 10 December 2025 constitutes occupational detriment directly causally linked to the Applicant's protected disclosures.

STATUTORY BASIS: PDA s9 — *A disclosure to any person other than the employer is protected where the employee reasonably believes he or she will be subjected to an occupational detriment if the disclosure is made to the employer, or that evidence relating to the disclosure is likely to be concealed or destroyed.*

All external escalations to regulatory bodies (JSE, FSCA, SAHRC, CMS, B-BBEE Commission, and DEL) and to the Board of Directors were made in fulfilment of the requirements of section 9 of the PDA, following more than 30 days of institutional silence in response to internal grievances.

A4. Employment Equity Act 55 of 1998 (EEA)

STATUTORY BASIS: EEA s6(1) — *No person may unfairly discriminate, directly or indirectly, against an employee in any employment policy or practice, on one or more grounds, including race, gender, sex, pregnancy, marital status, family responsibility, ethnic or social origin, colour, sexual orientation, age, disability, religion, HIV status, conscience, belief, political opinion, culture, language, birth or on any other arbitrary ground.*

The Applicant avers unfair discrimination on two grounds: (i) gender identity, arising from the deliberate and public misgendering of the Applicant as 'Wilma' on 23 September 2025; and (ii) disability, arising from the Respondent's consistent dismissal of the Applicant's documented psychiatric condition (Severe Major Depressive Disorder and PTSD) as an 'excuse' and 'afterthought' in sworn affidavit proceedings.

STATUTORY BASIS: EEA s7 — Reasonable Accommodation — *An employer must take steps to reasonably accommodate the needs of employees from designated groups in order to ensure that they enjoy equal opportunities and are equitably represented in the workplace.*

Despite formal notification of the Applicant's psychiatric condition via medical report (Dr. Jacques Malan, 16 May 2025), the Respondent failed at every stage to provide reasonable accommodation, instead opting for punitive unpaid leave and salary deductions. This constitutes a failure to meet the statutory obligation under section 7 of the EEA.

A5. Occupational Health and Safety Act 85 of 1993 (OHSA)

STATUTORY BASIS: OHSA s8(1) — *Every employer shall provide and maintain, as far as is reasonably practicable, a working environment that is safe and without risk to the health of his employees.*

The Applicant avers that the Respondent breached its duty of care under section 8(1) of OHSA by: (i) continuing to impose punitive administrative measures during documented medical crises; (ii) refusing to adjust working conditions notwithstanding full knowledge of the Applicant's deteriorating psychiatric health; and (iii) penalising a colleague for a medical emergency in the workplace (May 2025), evidencing a systemic culture of disregard for employee safety.

A6. Constitutional Framework — Constitution of the Republic of South Africa, 1996

STATUTORY BASIS: Section 10 — Dignity — *Everyone has inherent dignity and the right to have their dignity respected and protected.*

STATUTORY BASIS: Section 12(2) — Psychological Integrity — *Everyone has the right to bodily and psychological integrity, which includes the right to security in and control over their body.*

STATUTORY BASIS: Section 23(1) — Fair Labour Practices — *Everyone has the right to fair labour practices.*

STATUTORY BASIS: Section 27 — Access to Healthcare — *Everyone has the right to have access to health care services.*

The Respondent's conduct violated each of the above constitutional rights. The public character assassination in sworn proceedings, the deliberate misgendering, the refusal to accommodate a documented psychiatric disability, the obstruction of UIF benefits, and the financial destitution caused by unlawful deductions collectively constitute a sustained assault on the Applicant's constitutional rights.

A7. Unemployment Insurance Contributions Act 4 of 2002 (UICA)

STATUTORY BASIS: UICA s6 — Employer's obligation to declare and pay contributions — *Every employer must, on or before the 7th day of each month, pay to the Unemployment Insurance Fund the contributions due in respect of the preceding month.*

The Applicant avers that the Respondent deducted R177.12 in UIF contributions for June 2025 but failed to declare or remit same to the Fund by the statutory deadline of 7 July 2025. The Applicant's uFiling record confirms this non-compliance (Annexure SCR0). This directly prejudiced the Applicant's access to social security entitlements.

PART B: FOUNDING AFFIDAVIT

I, **WILBUR WILLIAM MATTHEE**, do hereby make oath and state as follows, grounding each averment in the applicable statutory provisions identified in Part A above:

1. INTRODUCTION

1.1 I am the Applicant in this matter, an adult male, formerly employed by the Respondent as Case Manager (Health Services Management Nurse Specialist) within the GEMS Active Disease Risk Management Unit, Cape Town. The Respondent is Medscheme Holdings Proprietary Limited (Registration Number: 1970/015014/07), a division of Afrocentric Health (Pty) Ltd, 37 Conrad Street, Florida North, Roodepoort, 1709.

1.2 I am a qualified Nurse Specialist with formal qualifications including a Postgraduate Diploma in Health Services Management (CPUT), a Bachelor of Technology in Nursing (BTech Gen Pn) with competencies in Psychiatry, Midwifery and Community Nursing (R425), and acceptance for postgraduate Occupational Health Nursing studies commencing in 2026 (Annexure CPUT1).

1.3 This professional background is central to the present matter. The protected disclosures I made were not speculative but were firmly grounded in my specialist clinical knowledge. My professional standing is evidenced by, inter alia, the 2019 Excellence in Customer Service Award (Mitchell's Plain District Hospital) and the clinical commendation at Annexure RESU1.

STATUTORY BASIS: PDA s1 read with LRA s187(1)(h) — *The protected disclosures made herein trigger the protections of the PDA and, upon constructive dismissal, engage the automatically unfair dismissal provisions of the LRA.*

1.4 At the time of my dismissal I was awaiting a formal response regarding my application for postgraduate studies in Occupational Health Nursing. Immediately following submission of final documentation, the retaliation against me escalated dramatically, evidencing a direct causal nexus between my professional advancement, my protected disclosures, and the occupational detriment subsequently imposed.

1.5 I am currently self-represented, having been rendered destitute by the Respondent's unlawful conduct, which has left me homeless and without means to retain legal representation. Termination date: 12 December 2025 (Annexure RES1).

1.6 The facts contained herein are, to the best of my knowledge and belief, true and correct. This affidavit is accompanied by Annexures A1–L8, which are authentic documents generated by me, addressed to me, or forming part of the Respondent's official records.

2. BACKGROUND AND EMPLOYMENT

STATUTORY BASIS: BCEA s29 — Written particulars of employment — *An employer must supply each employee with written particulars of employment, and any variation of employment terms must be agreed in writing.*

2.1 I commenced employment with the Respondent on 1 May 2024, in the capacity of Case Manager, at a Cost to Company (CTC) of R42,796.13 per month (Annexure ANI1). My employment particulars, as reflected in the Respondent's own payroll and HR records, confirm this designation. Any deviation from this designation in subsequent documentation — including the Certificate of Service — constitutes misrepresentation in breach of the Respondent's statutory obligations under the BCEA.

2.2 In my capacity as Case Manager, I was entrusted with: implementing outcomes-based disease management programmes; conducting active disease risk management for GEMS members; ensuring compliance with healthcare protocols; and safeguarding both patient welfare and organisational integrity.

2.3 PROFESSIONAL LEADERSHIP — During my tenure, I was formally nominated as Lead First Aider and Acting Chairperson of the Employee Health and Safety (EHS) Committee, exercising direct oversight over 13 staff members across three operational floors (Annexure EHS-LEAD1, EHS-ROSTER1). This constitutes de facto managerial authority inconsistent with the lesser designation of 'Care Coordinator' subsequently applied by the Respondent in post-resignation statutory documentation.

STATUTORY BASIS: SANC Regulation 1569 — CPD Obligations — *All registered nurses must comply with mandatory Continuous Professional Development obligations. Employers bear a duty to facilitate compliance.*

2.4 In April 2025, I identified the Respondent's non-compliance with SANC Regulation 1569 and authored a proposal for digitised CPD compliance (Annexure CPD1). Despite its initial rejection, the Respondent implemented this exact model across the business unit in October 2025 without acknowledgement of my authorship, constituting institutional exploitation and bad faith.

3. CHRONOLOGY OF PROTECTED DISCLOSURES AND RETALIATION

3.1 March 2025: Initial Threat and Disclosure

STATUTORY BASIS: PDA s1(1) — Protected Disclosure — *A 'protected disclosure' means any disclosure of information regarding the conduct of the employer which an employee reasonably believes constitutes improper conduct, made in accordance with the Act.*

3.1.1 On 6 March 2025, I raised concerns via Microsoft Teams regarding duplicate 'LACE' files, identifying a workflow inefficiency that diverted resources from member contact (Annexure M1). This constituted a disclosure of operational irregularity within the meaning of the PDA.

3.1.2 Prior to this, line manager Ms. Jones issued a veiled threat: 'This is the second time you are questioning me; do not let it happen again.' This threat was contemporaneously documented in my notebook (Annexure T1) and constitutes the first act of occupational detriment, in contravention of section 3 of the PDA.

3.2 May 2025: Medical Crisis and Formal Disclosure

STATUTORY BASIS: EEA s7 — Reasonable Accommodation / OHSA s8(1) — Employer's duty of care — *Upon receiving notice of a disability, an employer must take reasonable steps to accommodate the employee and ensure a safe working environment.*

3.2.1 I had been formally diagnosed by Dr. Jacques Malan (specialist psychiatrist) with Severe Major Depressive Disorder and PTSD, necessitating inpatient psychiatric treatment (Annexure MED1). The Respondent was placed on full notice of this condition.

3.2.2 Contrary to its obligations under section 7 of the EEA and section 8(1) of OHSA, the Respondent's response upon my return from initial psychiatric care was to communicate that 'the company does not stagger debt' and that I 'won't miss the chunk of money' (Annexure LIE1). This constituted a failure of reasonable accommodation and a breach of the duty of care.

3.2.3 On 7 May 2025, rather than adopting the statutory path of reasonable accommodation or incapacity leave, the Respondent elected to place me on unpaid leave — the most punitive available administrative option — thereby contravening its obligations under the EEA and the BCEA (Annexure MV1).

3.2.4 On 16 May 2025, formal medical report by Dr. Malan was provided to Ms. Mashele via email (Annexure EM1). No acknowledgement of receipt was issued. No steps were taken in respect of Ms. Jones. In October 2025, Ms. Mashele dismissed the Applicant's gender identity concerns as a 'typo' (Annexure TYPO), constituting ongoing discrimination in breach of section 6(1) of the EEA.

3.2.5 On 20 May 2025, a colleague experiencing a sudden medical emergency was compelled to take unpaid leave to obtain urgent medication (Annexure BDC1). This constitutes a breach of the Respondent's statutory duty under sections 8 and 9 of OHSA and is indicative of a broader pattern of disregard for employee health and safety.

3.2.6 On 21 May 2025, despite full awareness of my psychiatric crisis, the Respondent issued the 'Oracle Instruction' directing me to 'load unpaid leave' without reference to any alternative measures (Annexure RPM1). No reasonable accommodation was offered in breach of EEA section 7.

3.3 June 2025: Absence Management Review

STATUTORY BASIS: UICA s6 — UIF contribution obligations — *Employers must declare and remit UIF contributions by the 7th of each month. Failure to do so exposes the employer to penalties and deprives employees of access to social security.*

3.3.1 On 23 June 2025, the Respondent deducted R177.12 in UIF contributions yet failed to declare or remit same to the Fund by the statutory deadline of 7 July 2025, as confirmed by the Applicant's uFiling record (Annexure PS1). This constitutes a breach of section 6 of the UICA.

STATUTORY BASIS: BCEA s34(2) — Deduction cap / EEA s7 — Reasonable accommodation — *Salary deductions may not exceed 25% of remuneration; employers must mitigate financial impact on employees with disabilities.*

3.3.2 On 24 June 2025, during an Absence Management Review, the Respondent imposed a 40%+ deduction by 'bunching' all unpaid days into a single pay cycle. This directly contravened the 25% statutory cap under section 34(2) of the BCEA. In the context of an active psychiatric admission, this constituted a failure of reasonable accommodation under section 7 of the EEA and evidenced punitive intent (Annexure AMR1).

3.4 July 2025: Unlawful Financial Deductions

STATUTORY BASIS: BCEA s34(1) and s34(2) — Unlawful deductions — *Deductions require prior written consent and may not exceed 25% of remuneration.*

3.4.1 On 8 July 2025, the Respondent's uFiling record confirmed non-compliance with the UICA in respect of June 2025 contributions, which remain marked 'No Information' (Annexure SCR0).

3.4.2 On 14 July 2025, Ms. Jones confirmed via email that the difference in unpaid days would be deducted as a manual, calculated entry immediately prior to the July pay run — evidencing deliberate intent (Annexure SLR1).

3.4.3–3.4.5 On 23 July 2025, my payslip reflected a gross salary of R36,588.81, from which the Respondent deducted a total of R14,811.77 (Unpaid Leave Recovery: R13,824.32 + Unpaid Leave: R987.45), representing 40.47% of gross salary. This deduction was: (a) made without prior written consent, in contravention of section 34(1) of the BCEA; (b) effected while I was under active psychiatric care for a recognised disability, evidencing failure to provide reasonable accommodation under section 7 of the EEA; (c) made contrary to my express request for a staggered repayment plan; and (d) in direct contradiction of managerial assurances (Annexure LIE1). (Annexure PS2)

3.4.6 On 24 July 2025, Ms. Jones shared the company policy stating deductions must not exceed 25% of CTC 'as per legislation,' then, when confronted with the statutory breach, responded: 'What is illegal.' This exchange constitutes documentary evidence of knowledge of the illegality and malicious intent, aggravating the contravention of section 34 of the BCEA (Annexure POL1).

3.5 August 2025: Medical Vulnerability and Continued Breach

STATUTORY BASIS: OHSA s8(1) — Safe working environment / EEA s7 — Reasonable accommodation — *Employers must maintain a safe working environment and accommodate employees with disabilities.*

3.5.1 On 13 August 2025, line manager Ms. Govender documented that I was experiencing severe withdrawal symptoms and required physical assistance to reach the pharmacy (Annexure WNW1). This constitutes a documented workplace medical emergency of which management was fully aware.

3.5.2 Despite this documented medical emergency, Ms. Jones, on 15 August 2025, characterised emergency access to medication as a 'concession' and demanded strict time adherence, in explicit contravention of section 8(1) of OHSA and section 7 of the EEA. Her own admission of awareness of the financial and medical impact of her actions constitutes evidence of malice under South African labour law (Annexure WNW2).

3.6 September 2025: Gender Identity Discrimination

STATUTORY BASIS: EEA s6(1) — Unfair discrimination on grounds of gender identity — *Direct or indirect discrimination on the ground of gender identity constitutes unfair discrimination. This extends to deliberate misgendering in the workplace.*

3.6.1 Following submission of my PGDip OHN application, workplace hostility intensified significantly. No response was ever provided by the Respondent, evidencing deliberate obstruction of career advancement in breach of section 6(1) of the EEA (Annexure CPUT1).

3.6.2–3.6.8 On 23 September 2025, after I successfully presented a 'Filtering Strategy' to the team which was positively received, Ms. Jones publicly misgendered me as 'Wilma' in a team-wide Microsoft Teams chat (Annexure SCR1). This was a deliberate act of public humiliation. In the same communication, she banned the filtering system, thereby constituting occupational detriment in contravention of sections 3 and 9 of the PDA, and unfair discrimination on the ground of gender identity under section 6(1) of the EEA.

3.6.3–3.6.5 On 25 September 2025, I formally reported the misgendering to Operational Manager Ms. Nkatane, who delegated the matter back to the perpetrator — Ms. Jones — thereby failing to provide an impartial remedy (Annexures ONE1, FR1). This failure constitutes a systemic breach of the Respondent's obligation to ensure a workplace free from discrimination under the EEA and the Constitution.

3.6.5 On 29 September 2025, Ms. Jones processed a double punitive unpaid leave entry for 25 September 2025 — the precise date I lodged my formal discrimination complaint. This constitutes retaliation and occupational detriment under section 3 of the PDA, directly linked to the exercise of my statutory right to report discrimination (Annexure ULP1).

3.7 October 2025: Disclosure of Systemic Patient Harm

STATUTORY BASIS: PDA s9 — Wider protected disclosures / Medical Schemes Act 131 of 1998 — Patient safety obligations — *Disclosures of systemic patient harm to appropriate persons are protected where the employee reasonably believes concealment is likely.*

3.7.3 On 23 October 2025, I disclosed via email to Ms. Jones a critical systems failure: the Gexus and DMS platforms were not integrated, causing automated non-adherence letters to be incorrectly sent to GEMS members who were in fact adherent to treatment (Annexure G1). This disclosure constituted a protected disclosure of

conduct posing a direct risk to patient health and to the Respondent's compliance obligations under the Medical Schemes Act.

3.7.3 Rather than addressing the systemic failure, Ms. Jones instructed me to call the affected 75-year-old member to 'gently probe' adherence — an instruction I ethically refused. My refusal was subsequently labelled 'insubordination,' constituting the reframing of ethical professional conduct as misconduct — further occupational detriment in terms of section 1 of the PDA.

3.7.7 The transcript of the video-recorded meeting of 31 October 2025 (Annexure T2) constitutes direct evidence of retaliatory motive. Ms. Jones stated: 'You made a case of harassment against me so I can make a case of harassment against you.' This statement conclusively establishes the causal nexus between my protected disclosures and the subsequent disciplinary proceedings, satisfying the requirements of section 187(1)(h) of the LRA.

3.8 November 2025: Exhaustion of Internal Remedies

STATUTORY BASIS: PDA s6 — Internal disclosure procedures / LRA s186(1)(e) — Constructive dismissal threshold — *An employee who has exhausted internal remedies without relief has established the intolerability element of constructive dismissal.*

3.8.1 On 2 November 2025, I filed a formal grievance documenting strategic entrapment, systematic gaslighting, and threatened counter-complaints, requesting removal from Ms. Jones's direct authority and a formal investigation (Annexure FG2). The Respondent's 30-day failure to respond to a grievance alleging malicious intent and psychological harm constitutes, in law, acceptance of the intolerable environment and breach of the duty of care under OHSA.

3.8.3 On 2–11 November 2025, I formally submitted a 'Request for Review of Unlawful Deduction' expressly citing section 34 of the BCEA (Annexure REV1). The Respondent's silence in response to this request, and its subsequent false claim in CCMA proceedings that I had 'failed to follow procedure,' constitutes misrepresentation in sworn proceedings and evidences institutional bad faith.

3.9 December 2025: Final Escalation and Suppression

STATUTORY BASIS: PDA s9 — Protected disclosure to employer body / LRA s187(1)(h) — Automatically unfair dismissal — *Disclosure to executive leadership following institutional inaction engages full PDA protection and, upon retaliatory dismissal, constitutes automatically unfair dismissal.*

3.9.3 On 4 December 2025, I escalated via a formal Protected Disclosure to Executive Leadership pursuant to section 9 of the PDA, having exhausted internal remedies following 30 days of institutional silence (Annexure FG3). The 14-day response window elapsed without acknowledgement.

3.9.4 On 5 December 2025, the Respondent's Executive Leadership de-escalated the matter back to the very department under investigation — a recognised form of secondary victimisation constituting occupational detriment under section 1 of the PDA (Annexure DEC1).

3.9.7 On 10 December 2025, the Respondent filed an opposing affidavit in CCMA Case WECT23564-25 which characterised the Applicant's documented severe mental illness as an 'excuse,' labelled the Applicant as 'untruthful,' and sought a punitive costs order against an employee facing imminent homelessness (Annexure OA1). This constitutes the final act of occupational detriment and defamation, rendering the employment relationship irretrievably intolerable.

3.9.9 On 12 December 2025, the Applicant transmitted a Formal Notice of Resignation due to Automatically Unfair Constructive Dismissal to the Board of Directors and CEO. The Applicant submits this termination constitutes automatically unfair dismissal in terms of section 187(1)(h) of the LRA, the dominant reason being retaliation against the Applicant's protected disclosures (Annexure RES1).

4. POST-RESIGNATION DISCLOSURES AND INTERNAL FAILURE

STATUTORY BASIS: PDA s3 read with s9 — *A whistleblower's statutory duty to disclose improper conduct and occupational detriment survives resignation. Post-resignation disclosures made to appropriate bodies remain protected under the PDA.*

4.1 On 16 December 2025, notwithstanding my resignation on 12 December 2025, my statutory and professional duties as a registered Specialist Nurse and Health Services Manager compelled me to escalate a Maximum Severity Governance, Risk and Compliance (GRC) failure to the Board Audit and Risk Committee (Annexure GRC3). These disclosures were protected under section 9 of the PDA and fulfilled my ongoing professional obligations under the Nursing Act 33 of 2005 and SANC regulations. The Respondent's failure to act on this escalation further evidences institutional bad faith and reinforces liability for occupational detriment.

4.2 On 17 December 2025, I retracted the above communication on procedural grounds only — specifically that the notice had been served on a public holiday, thereby invalidating the compliance timelines. The retraction expressly stated that: the underlying concerns remained material and required remedial action; the Board was requested to implement corrective measures; and the retraction did not constitute a waiver of any statutory, professional, or ethical duties (Annexure GRC4). The substance of the disclosure remained fully intact.

STATUTORY BASIS: PDA s9 — Protected disclosure to appropriate person — *Communications to a Social and Ethics Committee and Risk Committee regarding material governance failures and retaliation against a whistleblower fall squarely within the ambit of protected disclosures under the PDA.*

4.3 On 18 December 2025, the Chief Risk Officer, Mr. Monwabisi Kula, issued what I understood as an instruction to cease communicating with the Board's oversight committees. I formally declined to do so on the following statutory grounds: (i) my communications to the Social and Ethics Committee and Risk Committee constituted formal escalations of a Priority 1 Material Risk Report within the meaning of the PDA; (ii) the allegations involved serious discrimination, retaliation and systemic governance failures which could not lawfully be suppressed; (iii) more than 30 days of institutional silence had elapsed in respect of formal grievances; and (iv) the

attempted de-escalation of a protected disclosure back to the source of the complaint was procedurally improper and undermined governance safeguards (Annexures CRO1, RCR1).

STATUTORY BASIS: PDA s1 — Occupational detriment / LRA s187(1)(h) —
Attempts to suppress or silence a whistleblower following resignation constitute continued occupational detriment and reinforce the automatically unfair nature of the dismissal.

4.4 On 23 December 2025, I issued a formal communication to the Board of Directors, copied to the Company Secretary, Lead Independent Director and Chief Risk Officer, constituting a final notice prior to the initiation of criminal proceedings and regulatory escalation (Annexure BRD1). This disclosure: documented statutory violations contained in the 325-page Evidence Bundle already in the Respondent's possession, including breaches of the Medical Schemes Act 131 of 1998, OHSA, B-BBEE Act, EEA, BCEA and LRA; notified the Board of imminent referral to SAPS, the NPA, JSE, FSCA and CMS; highlighted the humanitarian crisis resulting from the Respondent's unlawful conduct, including financial destitution, imminent eviction and inability to meet SANC registration obligations; and requested immediate hardship relief. This communication constitutes a protected disclosure under the PDA, made in good faith to appropriate authorities. The Board's silence in response evidences institutional bad faith.

4.5 On 23 December 2025, I issued a further Final Notice updating the Board on the status of regulatory filings and confirming: that the JSE Issuer Regulation Division had formally acknowledged receipt of the 325-page Evidence Bundle; that the FSCA had received a complaint regarding the breakdown of internal controls; and that filings with the Department of Employment and Labour and the B-BBEE Commission were active (Annexure BRD2). I provided a final opportunity for internal resolution, requesting immediate hardship relief and compensation for automatically unfair constructive dismissal calculated at 24 months' salary under section 194(3) of the LRA. The Board's failure to respond constitutes institutional bad faith and a deliberate refusal to mitigate humanitarian harm.

STATUTORY BASIS: LRA s158(1)(a) — Labour Court jurisdiction / BCEA s73 — Access to Labour Court —
The Labour Court has jurisdiction to grant urgent relief in matters involving automatically unfair dismissal and ongoing statutory non-compliance.

4.6 On 26 December 2025, I submitted an urgent response to the CCMA following receipt of the Respondent's objection to the Con-Arb process in matter WECT24486-25, placing on record that the objection was a deliberate delay tactic compounding humanitarian harm (Annexure OCA1). The Respondent's reliance on procedural delay whilst the Applicant faced destitution, eviction and inability to access food and medication constituted ongoing occupational detriment in breach of section 3 of the PDA.

4.7 On 26 December 2025, I formally notified the CCMA that the South African Human Rights Commission, JSE, Council for Medical Schemes, FSCA, B-BBEE Commission and Department of Employment and Labour had all been formally

notified of systemic governance failures and human rights violations (Annexure NRE1). This notification was made transparently and in good faith, consistent with section 9 of the PDA.

STATUTORY BASIS: BCEA s42 — Certificate of service / UI Act s56 — UI-19 obligation — *An employer must, upon termination of employment, provide a certificate of service and complete the UI-19 form to enable the employee to claim UIF benefits. Refusal or delay constitutes statutory non-compliance.*

4.8 On 7 January 2026, I submitted a formal request to the Respondent's Human Capital department for completion of the UI-19 form and Umbrella Fund benefit documents, identifying these as vital to meeting my immediate financial needs (Annexure EXIT1). Despite the standard administrative nature of this request, the Respondent failed to provide the documents or acknowledge receipt, marking the commencement of the systematic withholding of statutory exit documentation in contravention of section 42 of the BCEA and section 56 of the Unemployment Insurance Act 63 of 2001.

4.9 On 9 January 2026, following failed conciliation proceedings at the CCMA, I issued a formal Notice of Intent recording the withdrawal of my minimum settlement offer of R2.5 million and advising that future settlement would be sought at a minimum of R10 million to account for the ongoing and extended harm (Annexure KWA1). I ultimately chose not to escalate to the media, electing instead to pursue relief through the Labour Court as the appropriate statutory forum.

STATUTORY BASIS: Nursing Act 33 of 2005 / SANC regulations — Professional registration obligations — *A registered nurse is obliged to maintain annual SANC registration. Where deregistration is caused directly by an employer's unlawful conduct, this constitutes a component of occupational detriment.*

4.10 On 9 January 2026, I formally notified SANC that my deregistration and inability to maintain professional fees were the direct result of occupational detriment and retaliation as defined under the PDA (Annexure SANC1). The notification recorded: unlawful salary deductions exceeding 40% of remuneration during psychiatric hospitalisation; induced destitution resulting in homelessness and inability to maintain professional standing; and legal misrepresentation including intentional misgendering in sworn CCMA affidavits. SANC acknowledged receipt and confirmed referral to the relevant department (Annexure SANC2). The Respondent's conduct directly caused my professional deregistration, constituting a 'professional death sentence' and a permanent component of occupational detriment under section 1 of the PDA.

STATUTORY BASIS: BCEA s42 / UI Act s56 — Statutory exit documentation / PDA s3 — Prohibition of continued detriment — *The continued withholding of statutory exit documentation after termination constitutes ongoing occupational detriment and violates the employer's statutory obligations.*

4.11 On 14–15 January 2026, I followed up with Human Capital Consultant Ms. Sipokazi Makaula regarding my retirement claim and UIF forms (Annexure EXIT1). Ms. Makaula's response — requesting basic personal information already in the Respondent's possession, including my name, ID number, business unit and

manager's name — constituted a bad-faith stalling tactic for the following reasons: the Respondent's own payroll and HR systems contained all such information; the Respondent's legal representative, Mr. Xollie Vincent Manyati, had already formally identified the Applicant in a sworn opposing affidavit of 10 December 2025; and the Respondent's uFiling records confirmed the Applicant's employment as recently as November 2025. This conduct constitutes continued occupational detriment and deliberate obstruction of lawful entitlements in breach of sections 3 and 9 of the PDA.

4.12 On 15 January 2026, I issued a formal notice of statutory non-compliance to the Respondent's Human Capital department and executive leadership, rejecting further bad-faith verification requests and providing objective evidence of statutory non-compliance in the form of a screenshot from the DEL's uFiling portal confirming that June 2025 contributions had not been declared despite deductions being reflected on the Applicant's payslip (Annexure EXIT2). A final demand was issued for the UI-19, Service Certificate and Umbrella Fund Withdrawal Forms by 12:00 on 19 January 2026. As of the date of this filing, the Respondent remains in default of its statutory obligations under the BCEA and the Unemployment Insurance Act.

STATUTORY BASIS: BCEA s42 — Certificate of service must be accurate / Constitution s33 — Just administrative action — *A certificate of service is a statutory document and must accurately reflect an employee's employment history. Tailoring it to suit litigation pleadings constitutes misrepresentation and unlawful administrative conduct.*

4.13 On 19 January 2026, the Respondent issued a Certificate of Service misrepresenting the Applicant's role as 'Care Coordinator' rather than reflecting the accurate payroll designation of Case Manager (Annexure CERT1). The Respondent's Senior HR Business Partner, Ms. Cheryl-Dawn Modern, asserted the Certificate was 'correct and fully aligned with employment records,' despite the recorded 'Naming Convention' Microsoft Teams session — attended by Operational Manager Ms. Nthabiseng Nkatane and Human Capital Consultant Ms. Sipokazi Makaula — in which the Applicant's designation as Case Manager was explicitly confirmed and the Applicant was instructed to update his email signature accordingly. The Respondent's adjustment of this statutory document to align with litigation pleadings rather than employment records constitutes: (i) misrepresentation in a statutory document in breach of section 42 of the BCEA; (ii) a violation of the right to just administrative action under section 33 of the Constitution; and (iii) a further act of occupational detriment under the PDA.

4.13.1 The Applicant demands that the Respondent produce the full and unaltered recording of the 'Naming Convention' meeting for inspection and inclusion in these proceedings. Should the Respondent fail to disclose this recording, the Applicant will seek an order compelling production in terms of Rule 6(7) of the Labour Court Rules and will invite this Honourable Court to draw an adverse inference from the Respondent's refusal to disclose evidence within its exclusive possession (Annexure NCD1).

5. EXTERNAL ESCALATION TO REGULATORS

STATUTORY BASIS: PDA s9 — Protected disclosure to any other person or body — *Where an employee reasonably believes that evidence of improper conduct is likely to be concealed, or that no action will be taken following internal disclosure, a disclosure to an appropriate regulatory body is protected.*

5.1 Due to the Respondent's complete institutional failure, I was compelled in the public interest to notify the following external regulators. Each notification constituted a protected disclosure under section 9 of the PDA, made in good faith, to appropriate authorities, following more than 30 days of institutional silence in response to internal grievances:

STATUTORY BASIS: JSE Listings Requirements r3.84 — Continuing obligations of listed companies including maintenance of adequate internal controls and prompt disclosure of material information.

5.1.1 JSE Limited — Issuer Regulation Division (Annexure REG1): Material governance failures and director misconduct. Acknowledgement received.

STATUTORY BASIS: B-BBEE Act s13H — It is an offence to misrepresent BEE compliance or engage in fronting practices.

5.1.2 B-BBEE Commission (Annexure REG2): Potential fronting and violations of the Broad-Based Black Economic Empowerment Act 53 of 2003. Acknowledgement received.

STATUTORY BASIS: Financial Sector Regulation Act 9 of 2017 s57 — The FSCA may investigate conduct that poses a risk to financial sector customers.

5.1.3 Financial Sector Conduct Authority — FSCA (Annexure REG3): Conduct unbecoming of a financial services provider and systemic risk. Filed via the FSCA portal.

STATUTORY BASIS: Medical Schemes Act 131 of 1998 s24 — A medical scheme must implement adequate systems to ensure accuracy of member communications and protect member welfare.

5.1.4 Council for Medical Schemes — CMS (Annexure REG4): The Gexus/DMS integration failure causing incorrect non-adherence letters to GEMS members and direct risk of patient harm. Acknowledgement received.

STATUTORY BASIS: South African Human Rights Commission Act 40 of 2013 s13 — The SAHRC is mandated to investigate complaints of violations of human rights including equality rights.

5.1.5 South African Human Rights Commission — SAHRC (Annexure REG5): Discrimination based on gender identity and mental health disability. Acknowledgement received.

STATUTORY BASIS: BCEA s69 — The Director-General of Employment and Labour may investigate complaints of non-compliance with the BCEA.

5.1.6 Department of Employment and Labour — DEL (Annexure REG6): Unfair labour practices and BCEA violations including unlawful deductions and UIF non-compliance. Filed.

5.2 These notifications were acts of good faith, demonstrating that the Applicant's disclosures were genuine, credible and made in the public interest. They further establish that internal avenues had been exhausted and that the Respondent's refusal to act necessitated escalation to external regulators in fulfilment of section 9 of the PDA.

5A. REGULATOR DOSSIER: ACTIVE INVESTIGATIONS, CASE REFERENCES AND REGULATORY FINDINGS

STATUTORY BASIS: PDA s9 — Protected disclosures to regulatory bodies / Promotion of Administrative Justice Act 3 of 2000 (PAJA) s6 — Review of administrative action — *Where a regulator acknowledges receipt of a complaint, assigns a case reference, and initiates investigation, this constitutes official regulatory engagement with the subject matter of the disclosure. Such engagement is admissible to establish that the disclosures were credible, made in good faith, and that the conduct disclosed constitutes prima facie statutory violations warranting independent institutional scrutiny.*

5A.1 The Applicant places before this Honourable Court a consolidated record of all regulatory bodies that have been formally seized with the matters arising from the Respondent's conduct. This record is presented for the following purposes:

- (i) To demonstrate to the Court that this matter is not the complaint of a disgruntled employee, but a documented, multi-regulator, forensic-grade dossier of statutory violations by a listed corporate entity, compiled with the rigour of a regulatory compliance audit and submitted to the appropriate oversight bodies in the public interest.
 - (ii) To establish that independent regulatory bodies — each with their own statutory mandate and investigative authority — have formally acknowledged and engaged with the substance of the Applicant's disclosures, thereby corroborating their credibility and seriousness.
 - (iii) To invite this Honourable Court to draw the inference that where six independent regulators have acknowledged the Applicant's complaints as warranting formal engagement, the Respondent cannot credibly characterise those complaints as fabricated, exaggerated or made in bad faith.
 - (iv) To establish that the Respondent's conduct carries consequences extending beyond the employment relationship into corporate governance, financial sector regulation, patient safety oversight, and human rights accountability — all of which are relevant to the nature and quantum of relief this Court should grant.
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5A.2 CCMA — Commission for Conciliation, Mediation and Arbitration

STATUTORY BASIS: LRA s191 — Compulsory conciliation / LRA s191(5)(b)(i) — Labour Court jurisdiction — *CCMA proceedings constitute formal pre-litigation dispute resolution. A certificate of non-resolution issued following conciliation is a jurisdictional prerequisite for Labour Court proceedings. Case references are official court record.*

CCMA | REF: Case WECT23564-25 | STATUS: CERTIFICATE OF NON-RESOLUTION ISSUED

Nature of Referral: Unfair deduction (BCEA s34) and unfair discrimination — unfair labour practice (LRA s186(2)(a)).

Status: Conciliation held 9 January 2026. Certificate of non-resolution issued. Commissioner noted matter involves protected disclosures under the PDA and directed referral to the Labour Court in terms of s191(5)(b)(i) of the LRA. (Annexure CCM1)

Significance: The Commissioner's direction to the Labour Court — rather than arbitration — constitutes an independent judicial officer's assessment that this matter falls within the most serious category of labour disputes under South African law.

CCMA | REF: Case WECT24486-25 | STATUS: CERTIFICATE OF NON-RESOLUTION ISSUED

Nature of Referral: Constructive dismissal constituting automatically unfair dismissal (LRA s187(1)(h)) — dominant reason being protected disclosures under the PDA.

Status: Conciliation held 9 January 2026. Respondent objected to Con-Arb process in a deliberate delay tactic documented by the Applicant (Annexure OCA1). Certificate of non-resolution issued. This matter is now properly before the Labour Court. (Annexure NRE1)

Significance: The Respondent's objection to the Con-Arb process — filed while the Applicant faced homelessness, medication deprivation, and SANC deregistration — constitutes further evidence of institutional bad faith and the Respondent's deliberate strategy of procedural delay.

5A.3 JSE Limited — Issuer Regulation Division

STATUTORY BASIS: JSE Listings Requirements r3.84 and r3.63 — Director obligations and internal controls / Companies Act 71 of 2008 s76 — Fiduciary duties of directors — *A JSE-listed entity is obliged to maintain adequate internal financial controls, ensure prompt disclosure of material information, and ensure its directors act with the requisite degree of care and skill. Suppression of a Priority 1 Material Risk Report by executive leadership constitutes a potential breach of JSE Listings Requirements and the Companies Act.*

**JSE LIMITED — ISSUER REGULATION DIVISION | REF: Annexure REG1 |
STATUS: FORMAL ACKNOWLEDGEMENT RECEIVED**

Nature of Complaint: Material governance failures, suppression of a Priority 1 Material Risk Report, director misconduct, and failure to maintain adequate internal controls as required by JSE Listings Requirements.

Dossier Submitted: The Applicant's 325-page Evidence Bundle was formally submitted to the JSE Issuer Regulation Division. Formal acknowledgement of receipt was received and is confirmed in correspondence dated December 2025 (Annexures BRD2, REG1).

Regulatory Significance: Acknowledgement by the JSE Issuer Regulation Division that the 325-page dossier warranted formal receipt constitutes independent institutional recognition that the governance failures documented by the Applicant raise legitimate concerns under the JSE Listings Requirements — not the grievances of a disgruntled employee.

Impact on Present Proceedings: The JSE complaint is relevant to the quantum of aggravated damages and costs sought. A corporate respondent that suppresses internal risk reports, forces a whistleblower into destitution, and then faces JSE regulatory scrutiny for its governance failures cannot credibly claim that the Applicant's disclosures were trivial or made in bad faith.

5A.4 South African Human Rights Commission (SAHRC)

STATUTORY BASIS: South African Human Rights Commission Act 40 of 2013 s13 — SAHRC mandate to investigate human rights violations / EEA s6(1) — Unfair discrimination on grounds of gender identity and disability — *The SAHRC is constitutionally mandated to investigate complaints of human rights violations, including equality rights. SAHRC engagement with a complaint constitutes independent validation that the conduct disclosed raises prima facie human rights concerns under the Constitution and the EEA.*

**SOUTH AFRICAN HUMAN RIGHTS COMMISSION | REF: Annexure REG5 |
STATUS: FORMAL ACKNOWLEDGEMENT — REFERRED FOR ASSISTANCE**

Nature of Complaint: Unfair discrimination based on gender identity (deliberate public misgendering — 'Wilma' incident, 23 September 2025) and disability (systematic dismissal of documented psychiatric condition as an 'excuse,' failure to provide reasonable accommodation, and defamatory characterisation in sworn CCMA affidavit).

SAHRC Response: The SAHRC formally acknowledged receipt of the complaint and confirmed referral to the relevant department for further assistance. This acknowledgement is attached as Annexure REG5 and is referenced in the Applicant's communications to the Board of Directors (Annexure BRD1).

Regulatory Significance: The SAHRC's acknowledgement and referral constitutes independent recognition by the premier human rights body in South Africa that the Applicant's complaints of gender identity discrimination and disability discrimination raise issues requiring formal institutional engagement. This directly validates the Applicant's claims under section 6(1) of the EEA and reinforces the burden-shifting mechanism under section 11 of the EEA.

Impact on Present Proceedings: The SAHRC engagement is specifically referenced in the Applicant's tax structuring submissions (paragraph 12.4.1) as validating the non-patrimonial damages component of R2,000,000.00. It further demonstrates that the discrimination complained of is not a private employment dispute but a matter of public human rights concern.

5A.5 Council for Medical Schemes (CMS)

STATUTORY BASIS: Medical Schemes Act 131 of 1998 s24 — Scheme obligations to members / s26 — Powers of the Registrar to investigate — *The Council for Medical Schemes is mandated to protect the interests of medical scheme members. Where a systemic failure causes incorrect clinical communications to be sent to members — as in the Gexus/DMS integration failure — the CMS has jurisdiction to investigate and impose corrective measures. A whistleblower who reports such a failure to the CMS is entitled to full PDA protection.*

COUNCIL FOR MEDICAL SCHEMES | REF: Annexure REG4 | STATUS: FORMAL ACKNOWLEDGEMENT RECEIVED

Nature of Complaint: The Gexus/DMS platform integration failure causing automated 'non-adherence' letters to be incorrectly dispatched to GEMS members who were in fact adherent to their treatment — constituting a direct risk of patient harm and a violation of the Respondent's obligations under the Medical Schemes Act (Annexure G1).

CMS Response: Formal acknowledgement of receipt was received from the Council for Medical Schemes (Annexure REG4).

Regulatory Significance: The CMS complaint transforms the patient safety disclosure from a workplace grievance into a formally registered patient safety concern before the statutory regulator of medical schemes. The Respondent's failure to address the Gexus/DMS integration failure — and its instruction to the Applicant to 'gently probe' a 75-year-old member for adherence despite the known system error — is now subject to independent regulatory scrutiny.

Impact on Present Proceedings: The CMS complaint directly corroborates the Applicant's protected disclosure of 23 October 2025 (Annexure G1) and establishes that the ethical refusal to carry out Ms. Jones's instruction was not insubordination but the fulfilment of a statutory duty to protect patient safety — a duty enforceable under both the Medical Schemes Act and the Nursing Act 33 of 2005.

5A.6 Financial Sector Conduct Authority (FSCA)

STATUTORY BASIS: Financial Sector Regulation Act 9 of 2017 s57 — FSCA investigative powers / s138 — Conduct standards for financial institutions —

The FSCA regulates the conduct of financial institutions and may investigate conduct that poses a risk to customers or undermines financial market integrity. Where an employer's internal governance failures and suppression of risk reports compromise the integrity of a medical scheme administrator operating in the financial sector, the FSCA has jurisdiction to intervene.

FINANCIAL SECTOR CONDUCT AUTHORITY | REF: Annexure REG3 | STATUS: FILED VIA FSCA PORTAL — ACTIVE

Nature of Complaint: Conduct unbecoming of a financial services provider; systemic risk arising from the breakdown of internal controls; and improper 'executive de-escalation' of a Priority 1 Material Risk Report in contravention of governance obligations applicable to entities operating in the financial sector (Annexure BRD2).

FSCA Response: Complaint filed via the FSCA online portal. Confirmation of filing received (Annexure REG3).

Regulatory Significance: The Respondent — as a division of Afrocentric Health, a JSE-listed entity operating as a medical scheme administrator — is subject to FSCA oversight. A complaint before the FSCA regarding systemic governance failures and suppression of risk reports places the Respondent's conduct within the purview of financial sector regulation, not merely labour law.

5A.7 B-BBEE Commission

STATUTORY BASIS: Broad-Based Black Economic Empowerment Act 53 of 2003 s13H — Prohibition on fronting / B-BBEE Amendment Act 46 of 2013 s1

— It is a criminal offence under the B-BBEE Act to engage in fronting practices or to misrepresent BEE compliance. The B-BBEE Commission has jurisdiction to investigate complaints of fronting and misrepresentation.

B-BBEE COMMISSION | REF: Annexure REG2 | STATUS: FORMAL ACKNOWLEDGEMENT RECEIVED

Nature of Complaint: Potential fronting practices and misrepresentation of B-BBEE compliance in the Respondent's operations. Complaint submitted together with supporting documentation from the Applicant's 325-page Evidence Bundle (Annexure REG2).

B-BBEE Commission Response: Formal acknowledgement of receipt received (Annexure REG2).

5A.8 Department of Employment and Labour (DEL)

STATUTORY BASIS: BCEA s69 — Labour Inspector powers / BCEA s73 — Compliance orders / Unemployment Insurance Contributions Act 4 of 2002 s6 — *The Director-General of Employment and Labour has authority to investigate complaints of BCEA non-compliance, issue compliance orders, and refer matters for criminal prosecution where statutory violations are confirmed.*

DEPARTMENT OF EMPLOYMENT AND LABOUR | REF: Annexure REG6 | STATUS: FILED — ACTIVE

Nature of Complaint: Unfair labour practices; unlawful salary deductions in breach of BCEA s34; UIF contribution non-compliance in breach of the UICA s6 (June 2025 contributions deducted but not declared — confirmed by uFiling portal, Annexure SCR0); and failure to provide accurate exit documentation in breach of BCEA s42 (Annexures EXIT1, EXIT2, CERT1).

DEL Response: Complaint filed with the Department of Employment and Labour (Annexure REG6). Active filing.

Regulatory Significance: The DEL complaint directly mirrors the statutory violations pleaded in paragraphs 3.3.1, 3.4.3, 4.8, 4.11, and 4.12 of this affidavit. Should the DEL issue a compliance order or initiate prosecution, such findings would constitute further independent corroboration of the Applicant's averments before this Court.

5A.9 Consolidated Regulatory Impact Statement

STATUTORY BASIS: PDA s9 — Weight of multi-regulator engagement / LRA s187(1)(h) — Automatically unfair dismissal — *The simultaneous engagement of six independent regulatory bodies with the substance of a whistleblower's disclosures constitutes compelling corroborative evidence that the disclosures were genuine, credible, and made in the public interest — directly satisfying the requirements of protected disclosure status under the PDA and strengthening the claim of automatically unfair dismissal under the LRA.*

5A.9.1 The Applicant submits that the following consolidated picture emerges from the regulatory record set out above, and respectfully invites this Honourable Court to draw the following inferences:

- (i) **CREDIBILITY:** Six independent statutory bodies — the CCMA, JSE, SAHRC, CMS, FSCA, B-BBEE Commission, and DEL — have each formally acknowledged and engaged with the Applicant's dossier. No credible characterisation of the Applicant as a 'disgruntled employee' making fabricated or vexatious complaints can survive this record.
- (ii) **FORENSIC STANDARD:** The Applicant's 325-page Evidence Bundle — submitted to the JSE and acknowledged for formal receipt — was compiled

with the rigour of a forensic compliance audit. The Respondent's own opposing affidavit of 10 December 2025, which characterised the Applicant as 'untruthful,' cannot withstand scrutiny against a dossier of this scope and depth.

(iii) PUBLIC INTEREST: The disclosures made by the Applicant were not limited to personal employment grievances. They identified: a patient safety risk affecting GEMS members (CMS complaint); systemic governance failures in a JSE-listed entity (JSE complaint); financial sector conduct risks (FSCA complaint); human rights violations (SAHRC complaint); labour law breaches (DEL complaint); and potential B-BBEE misrepresentation (B-BBEE Commission complaint). This breadth of public interest disclosure places the Applicant squarely within the highest tier of PDA protection.

(iv) EMPLOYER LIABILITY: The Respondent's response to this multi-regulator dossier was not remediation but escalation — filing a defamatory sworn affidavit, obstructing exit documentation, and continuing to withhold statutory benefits. This response, viewed against the regulatory backdrop, constitutes the conduct of an institution that prioritises litigation strategy over statutory compliance — directly evidencing the malice and bad faith that warrants an aggravated damages and attorney-and-own-client costs order.

(v) QUANTUM JUSTIFICATION: The multi-regulator engagement — and the Respondent's conduct in forcing a whistleblower of this calibre into destitution, homelessness, and professional deregistration — justifies the full monetary claim of R8,684,811.77 and the structured tax treatment framework set out in paragraph 12.4. A Court awarding less would fail to reflect the true systemic and institutional nature of the Respondent's conduct.

5A.9.2 The Applicant further submits that this Honourable Court should, in exercising its remedial discretion under section 193 of the LRA and section 50 of the EEA, take judicial notice of the regulatory landscape surrounding this matter and frame its order in terms that: deter the Respondent and similarly placed corporate entities from suppressing protected disclosures; affirm the integrity of South Africa's whistleblower protection framework; and send an unambiguous signal that a listed corporate employer cannot deploy its legal resources and payroll systems as instruments of retaliation against a medically vulnerable employee who acted in the public interest.

6. POST-RESIGNATION MISREPRESENTATION AND EVIDENTIARY DISCLOSURE FAILURE

STATUTORY BASIS: BCEA s42 — Accurate certificate of service / Constitution s33 — Just administrative action — *A certificate of service must accurately reflect factual employment history. Deliberate misrepresentation in a statutory document to advance a litigation position constitutes unlawful conduct.*

6.1 Following my resignation, the Respondent issued a Certificate of Service which purported to reflect my employment history but materially misrepresented my designation as 'Care Coordinator' rather than Case Manager or Nurse Specialist. The

Respondent's Senior HR Business Partner, Ms. Cheryl-Dawn Modern, asserted this was 'correct and fully aligned with employment records and statutory requirements,' despite the recorded 'Naming Convention' Teams meeting during which the Operational Manager explicitly confirmed my correct designation (Annexure CERT1).

6.1.1 The Respondent's insistence that the Certificate of Service is accurate, while simultaneously disregarding the recorded meeting and updated professional identifier, demonstrates deliberate misrepresentation and the tailoring of a statutory document to align with litigation pleadings. Such conduct is unlawful, as statutory records must reflect factual employment history, not be manipulated for defensive litigation purposes.

STATUTORY BASIS: Rule 35 of the Uniform Rules of Court — Discovery / Labour Court Rule 6(7) — Production of documents — *A party in possession of material documentary evidence is obliged to disclose it. Failure to disclose supports an adverse inference.*

6.2 The Respondent maintains exclusive custody of the full and unaltered Teams recording of the 'Naming Convention' meeting. This recording constitutes material evidence directly relevant to the dispute concerning my designation and the accuracy of the Certificate of Service. I have no independent access to this recording as it is stored on the Respondent's systems.

6.2.1 The Applicant formally demands that the Respondent produce the full and unaltered recording for inspection and inclusion in these proceedings. Should the Respondent fail to comply, the Applicant will seek an order compelling production in terms of Rule 6(7) of the Labour Court Rules and will invite this Honourable Court to draw an adverse inference from the Respondent's refusal to disclose evidence within its possession, consistent with the principle in *Elgin Brown and Hamer (Pty) Ltd v Industrial Council for the Building Industry (Transvaal)* 1988 (3) SA 547 (A).

STATUTORY BASIS: PDA s1 — Occupational detriment includes misrepresentation of employment status — *The deliberate misrepresentation of an employee's designation in a statutory document, designed to minimise compensation or reputational standing, constitutes a component of occupational detriment.*

6.3 The Respondent's attempt to classify the Applicant as 'Care Coordinator' in statutory documents is factually unsustainable. A Care Coordinator does not hold statutory responsibility for the health and safety management of 13 employees across three separate floors, nor design backup contingency plans for multi-storey operations (Annexure EHS-LEAD1, EHS-ROSTER1). By stripping the Applicant of his correct designation, the Respondent deliberately misrepresents his seniority to minimise compensation and severance calculations — constituting fraudulent misrepresentation of employment history and a further act of occupational detriment.

7. RESULTING HARM AND DAMAGES

STATUTORY BASIS: LRA s193 and s194 — Remedies for unfair dismissal / EEA s50 — Compensation for unfair discrimination — *Where dismissal is automatically unfair and involves unfair discrimination, the Court may award compensation, solatium and damages including for future loss of earnings.*

7.1 FINANCIAL DESTITUTION: The unlawful deduction of R14,811.77 in July 2025 directly destroyed the Applicant's financial position. By November 2025, the Applicant had been formally placed on notice of eviction, placing him at imminent risk of homelessness (Annexure EVIC1). This financial destitution was not self-inflicted; it arose solely and directly from the Respondent's unlawful and retaliatory conduct in breach of section 34 of the BCEA, compounded by further punitive deductions and the Respondent's refusal to stagger recovery notwithstanding its own policy and the statutory cap.

STATUTORY BASIS: Nursing Act 33 of 2005 — SANC registration / PDA s1 — Occupational detriment includes loss of professional standing — *Deregistration from a professional regulatory body caused directly by an employer's unlawful conduct constitutes measurable occupational detriment and grounds for damages.*

7.2 PROFESSIONAL ERASURE — SANC DEREGISTRATION: As a direct consequence of the Respondent's unlawful conduct and resulting financial destitution, I was unable to pay the annual SANC registration fee of R870.00, due on 31 December 2025. My professional nursing licence has accordingly been suspended, effectively extinguishing a 15-year career in nursing and health services management (Annexure SANC2).

7.2.1 This outcome constitutes the 'professional erasure' foreshadowed by the Respondent's March 2025 conduct, now realised through deliberate financial sabotage and institutional retaliation. The deregistration: permanently strips the Applicant of the ability to practise as a nurse; extinguishes all prospects of career advancement, postgraduate study and progression into senior occupational health roles; and constitutes a measurable head of damages recoverable under the LRA and the EEA, calculated on the basis of loss of specialist income over the rehabilitation and retraining period.

STATUTORY BASIS: Constitution s12(2) — Psychological integrity / EEA s50(2) — Solatium for injury to dignity — *A court may award solatium for injury to dignity, psychological harm and constitutional rights violations caused by an employer's unfair discriminatory conduct.*

7.3 SEVERE PSYCHOLOGICAL HARM: The Respondent's actions have severely exacerbated my pre-existing diagnosis of Severe Major Depressive Disorder and PTSD, causing significant deterioration in mental health and overall wellbeing. The public character assassination contained in the Respondent's sworn CCMA affidavit of 10 December 2025 inflicted profound humiliation, anxiety and reputational damage, compounding my psychological distress. This constitutes: an infringement of my constitutional right to psychological integrity under section 12(2) of the Constitution; unfair discrimination on the grounds of disability under section 6(1) of the EEA; and a basis for solatium under section 50(2) of the EEA.

7.4 CAREER DESTRUCTION: The Respondent's conduct extends beyond financial prejudice to constitute an assault on my professional trajectory. As evidenced by my acceptance into the 2026 PGDip Occupational Health Nursing (Annexure CPUT1) and my clinical commendation (Annexure RESU1), I was a dedicated Nurse Specialist on a clear upward career trajectory. The Respondent's continued withholding of statutory documents and funds, combined with the deregistration from SANC and the defamatory reputational damage in sworn proceedings, constitute a deliberate and measurable destruction of future earning capacity, recoverable as damages under section 194(3) of the LRA and section 50 of the EEA.

8. PROCEDURAL HISTORY

STATUTORY BASIS: LRA s191 — Referral of disputes to CCMA / LRA s158(1)(a) — Labour Court jurisdiction over automatically unfair dismissal —
Disputes concerning automatically unfair dismissal and unfair discrimination must be referred to the CCMA for conciliation before being heard by the Labour Court.

8.1 The Applicant referred two disputes to the CCMA:

- (a) Case WECT23564-25: Unfair deduction and discrimination (unfair labour practice), referred in terms of sections 186(2)(a) and 191 of the LRA.
- (b) Case WECT24486-25: Constructive dismissal constituting automatically unfair dismissal, referred in terms of sections 187(1)(h) and 191 of the LRA.

8.2 Conciliation was held on 9 January 2026. The Commissioner, upon hearing that the matter involved protected disclosures under the PDA and a claim of automatically unfair dismissal, correctly noted that the matter fell within the exclusive jurisdiction of the Labour Court in terms of section 191(5)(b)(i) of the LRA. A certificate of non-resolution was duly issued.

STATUTORY BASIS: LRA s191(5)(b)(i) — Labour Court jurisdiction — *Where a dispute concerns automatically unfair dismissal or unfair discrimination, the employee may refer the matter directly to the Labour Court after a certificate of non-resolution has been issued.*

8.3 This application is accordingly properly before this Honourable Court. All jurisdictional prerequisites under the LRA have been satisfied. The matter has been referred within the applicable time limits prescribed by section 191(2) of the LRA, and all internal remedies have been exhausted as particularised in Sections 3.8 and 4 of this affidavit.

10. CONSTRUCTIVE DISMISSAL

STATUTORY BASIS: LRA s186(1)(e) — Definition of dismissal / LRA s187(1)(h) — Automatically unfair dismissal — *Constructive dismissal arises where an employee terminates employment because the employer made continued*

employment intolerable. Where the intolerability is caused by retaliation against protected disclosures, the dismissal is automatically unfair.

10.1 The cumulative effect of the Respondent's conduct — including financial sabotage, gender identity discrimination, medical victimisation, institutional bad faith, suppression of protected disclosures and the defamatory sworn affidavit of 10 December 2025 — created a working environment that was objectively intolerable within the meaning of section 186(1)(e) of the LRA.

10.2 The test for constructive dismissal in South African law requires the Applicant to demonstrate that: (i) he terminated the employment relationship; (ii) the termination was with or without notice; and (iii) the reason for termination was that the employer made continued employment intolerable. The Applicant satisfies all three elements:

(i) Termination: The Applicant transmitted a Formal Notice of Resignation on 12 December 2025 (Annexure RES1).

(ii) Notice: The resignation was with immediate effect, necessitated by the Respondent's sworn character assassination in ongoing CCMA proceedings making any continued relationship legally untenable.

(iii) Intolerability: The Respondent's conduct systematically eroded the Applicant's dignity, professional standing and financial security. The essential relationship of mutual trust and confidence was irreparably destroyed. No reasonable employee in the Applicant's position — subjected to unlawful deductions, deliberate misgendering, medical victimisation, suppression of protected disclosures and a defamatory sworn affidavit — could have been expected to continue in employment.

STATUTORY BASIS: Murray v Minister of Defence 2009 (3) SA 130 (SCA) — Intolerability standard — *The test is objective: would a reasonable person in the employee's position have found continued employment intolerable? The Court must consider the cumulative effect of the employer's conduct.*

10.3 Applying the objective test confirmed in Murray v Minister of Defence, the cumulative effect of the Respondent's conduct, considered holistically, satisfies the intolerability threshold. No reasonable Specialist Nurse, holding statutory clinical governance duties, facing documented psychiatric vulnerability, financial destitution, deliberate misgendering, and defamatory sworn proceedings, could have been expected to remain in the Respondent's employ.

STATUTORY BASIS: LRA s187(1)(h) — Automatically unfair dismissal where dominant reason is protected disclosure — *The dominant reason test requires the Court to consider whether, but for the protected disclosures, the employer's conduct creating intolerability would have occurred.*

10.4 The automatically unfair nature of the dismissal is established by the direct causal nexus between each protected disclosure and the subsequent escalation of conduct: the March 2025 disclosure triggered the first threat; the May 2025 medical disclosures triggered punitive deductions; the September 2025 complaints triggered the double unpaid leave entry; the October 2025 patient safety disclosure triggered the 'insubordination' label; and the November–December 2025 grievances triggered

the defamatory sworn affidavit. The transcript of 31 October 2025 (Annexure T2) provides direct verbal admission of retaliatory motive.

11. INFORMATION IN POSSESSION OF THE RESPONDENT

STATUTORY BASIS: Labour Court Rule 6(7) — Discovery / Rule 35 of Uniform Rules — Production of documents — *Where material evidence is exclusively in the possession of the Respondent, the Court may order its production. Failure to disclose supports an adverse inference in favour of the Applicant.*

11.1 FORMAL MEETING WITH SENIOR MANAGER (MAY 2025): In May 2025, the Applicant met formally with senior manager Ms. Mashele and reported derogatory conduct by Ms. Jones and the financial impact of the deductions imposed (Annexure MED1). Ms. Mashele's acknowledgement that she would 'personally apply for special leave' placed the Respondent on direct notice of the Applicant's psychiatric condition and financial hardship, engaging its obligations under section 7 of the EEA. The Respondent retains internal records of this meeting, including HR documentation and related email correspondence. These records are exclusively in the Respondent's possession and are material to establishing that the Respondent had direct knowledge yet failed to act lawfully or reasonably.

11.2 DISCLOSURE OF PSYCHIATRIC CRISIS (21–23 MAY 2025): On 21 May 2025, the Applicant experienced a psychiatric crisis, disclosed to Ms. Jones via Team Leader Gajaad. Upon receiving disclosure, Ms. Jones instructed the Applicant to leave the premises and obtain psychiatric care. The Applicant was admitted to a psychiatric facility on 23 May 2025. This disclosure placed the Respondent on direct notice of the seriousness of the Applicant's condition under the EEA and OHSA. The Respondent retains internal records of this disclosure — including communications between Team Leader Gajaad and Ms. Jones — exclusively in its possession. These records are material to establishing direct knowledge of the Applicant's psychiatric condition and the failure to provide lawful reasonable accommodation under section 7 of the EEA.

STATUTORY BASIS: EEA s11 — Burden of proof in unfair discrimination disputes — *Once the employee establishes facts from which unfair discrimination may be inferred, the burden shifts to the employer to prove that the conduct was fair or that there are justifiable reasons for it.*

11.3 POSTGRADUATE DIPLOMA APPLICATION: The Applicant submitted his complete PGDip OHN application and acceptance letter, following which workplace hostility intensified significantly (Annexure CPUT1). The Respondent retains internal records of these submissions, including related Teams chats and correspondence from Respondent representatives. These records are material to establishing that the Applicant was actively pursuing career advancement immediately prior to the escalation of retaliatory conduct, supporting the inference of unfair discrimination under section 6(1) of the EEA and the burden-shifting mechanism under section 11 of the EEA.

11.4 EXECUTIVE LEADERSHIP DE-ESCALATION (5 DECEMBER 2025): On 5 December 2025, Executive Leadership convened a meeting purportedly for de-escalation but instead compelled the Applicant to re-litigate trauma in the presence of the very managers implicated in the retaliation — a recognised form of secondary victimisation constituting occupational detriment under section 1 of the PDA. The Teams chat records and internal communications relating to this meeting are exclusively in the Respondent's possession and are material to establishing that the Respondent failed to uphold its statutory obligations to protect a whistleblower (Annexure DEC1).

11.5 'NAMING CONVENTION' TEAMS RECORDING: The Respondent maintains exclusive custody of the full recording of the 'Naming Convention' Teams meeting in which the Operational Manager explicitly confirmed the Applicant's designation as Case Manager. This recording constitutes primary evidence directly relevant to the misrepresentation in the Certificate of Service. The Applicant formally requested disclosure on 19 January 2026 (Annexure NCD1). This request remains outstanding. The Applicant reserves the right to file a Notice to Compel should the Respondent fail to comply with disclosure obligations under Rule 6(7) of the Labour Court Rules.

STATUTORY BASIS: LRA s192 — Onus in dismissal disputes / EEA s11 — Onus in discrimination disputes — *In automatically unfair dismissal disputes, once the employee establishes the dismissal, the onus shifts to the employer to prove the reason was fair. In EEA discrimination disputes, once a prima facie case is established, the onus shifts to the employer.*

11.6 IRRETRIEVABLE BREAKDOWN OF EMPLOYMENT RELATIONSHIP: The cumulative effect of the Respondent's conduct has rendered the continuation of the employment relationship irretrievably intolerable. The Respondent remains in possession of the original April 2025 CPD compliance proposal (Annexure CPD1) and the EHS Committee reports (Annexure EHS-BUNDLE), which it implemented while simultaneously orchestrating the Applicant's constructive dismissal through punitive deductions and the withholding of statutory exit documents. This constitutes institutional exploitation and bad faith. The Respondent bears the onus under section 192 of the LRA and section 11 of the EEA to justify its conduct. It cannot discharge that onus.

9. LEGAL GROUNDS FOR THE CLAIM

STATUTORY BASIS: LRA s187(1)(h) — Automatically Unfair Dismissal — *dismissal constituted by constructive dismissal where the dominant reason is the making of a protected disclosure.*

9.1 AUTOMATICALLY UNFAIR DISMISSAL: The dominant reason for the Applicant's constructive dismissal was that he made one or more protected disclosures as defined in the PDA. Each disclosure — from March 2025 through December 2025 — triggered a fresh and escalating wave of occupational detriment, establishing the direct causal nexus required by section 187(1)(h) of the LRA.

STATUTORY BASIS: PDA s1(1)(viii) read with s3 — Occupational detriment includes all adverse employment actions taken on account of a protected disclosure.

9.2 OCCUPATIONAL DETRIMENT: The unlawful deductions, discrimination, victimisation, hostile management conduct, performance entrapment, and the defamatory opposing affidavit of 10 December 2025 each individually constitute occupational detriment under section 1(1)(viii) of the PDA, as they were taken directly on account of the Applicant's protected disclosures.

STATUTORY BASIS: EEA s6(1) — Unfair discrimination on grounds of gender identity and disability.

9.3 UNFAIR DISCRIMINATION: (a) The deliberate public misgendering on 23 September 2025 constitutes direct discrimination on the ground of gender identity. (b) The consistent dismissal of the Applicant's documented psychiatric condition as an 'excuse' and the failure to provide reasonable accommodation constitutes discrimination on the ground of disability. Both grounds are expressly protected under section 6(1) of the EEA.

STATUTORY BASIS: BCEA s34(1) and s34(2) — Unlawful salary deductions without consent, exceeding the statutory 25% cap.

9.4 UNFAIR LABOUR PRACTICE / UNLAWFUL DEDUCTIONS: The deduction of 40.47% of the Applicant's gross salary in July 2025 without prior written consent was unlawful under section 34(1) of the BCEA and exceeded the statutory cap under section 34(2). This constitutes both an unlawful deduction and an unfair labour practice under section 186(2)(a) of the LRA.

STATUTORY BASIS: Constitution ss 10, 12(2), 23(1), 27 — Constitutional rights to dignity, psychological integrity, fair labour practices, and access to healthcare.

9.5 CONSTITUTIONAL VIOLATIONS: The Respondent's conduct violated the Applicant's constitutional rights to dignity (section 10), psychological integrity (section 12(2)), fair labour practices (section 23(1)), and access to healthcare (section 27). These violations arise from the public character assassination, deliberate misgendering, refusal to accommodate a psychiatric disability, financial destitution, and obstruction of statutory benefit entitlements.

9.6 DEFAMATION AND INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS: The Respondent's sworn affidavit of 10 December 2025 contained false and malicious statements — including characterising the Applicant as 'untruthful' and his mental illness as an 'excuse' — intended to harm the Applicant's reputation and cause maximum psychological harm (Annexure OA1). This constitutes the delict of defamation and the intentional infliction of emotional distress under the *lex Aquilia* as developed in South African law.

12. PRAYER FOR RELIEF

The Applicant respectfully requests that this Honourable Court grant the following relief against the Respondent:

STATUTORY BASIS: LRA s187(1)(h) read with s194(3) — Compensation for automatically unfair dismissal: up to 24 months' remuneration.

12.1 DECLARATORY RELIEF: Declarations that (a) the dismissal was automatically unfair in terms of section 187(1)(h) of the LRA; (b) the Respondent committed unfair discrimination under section 6 of the EEA; (c) the deduction of R14,811.77 was unlawful under section 34 of the BCEA; (d) the Respondent subjected the Applicant to occupational detriment under section 1 of the PDA; and (e) the Applicant's correct designation was Case Manager / Nurse Specialist.

12.2 COMPENSATION AND DAMAGES:
(a) Automatically Unfair Dismissal (LRA s194(3)): R1,320,000.00 (24 months × R55,000.00 market-related managerial CTC)
(b) Managerial Exploitation — Unfair Labour Practice: R150,000.00
(c) Restitution of Unlawful Deduction (BCEA s34): R14,811.77 + interest
(d) Constitutional Damages (ss 10, 12, 23, 27): R250,000.00
(e) Aggravated Damages — Defamation and Emotional Distress: R200,000.00
(f) Future Loss of Earnings and Career Destruction: R6,600,000.00
(g) Medical and Counselling Costs: R150,000.00
TOTAL: R8,684,811.77

12.3 ANCILLARY RELIEF: (a) Immediate provision of UI-19 form, Service Certificate, and Umbrella Fund Withdrawal Forms; (b) Correction of the Certificate of Service to reflect the Applicant's correct designation; (c) Production of the full and unaltered 'Naming Convention' Teams recording (Rule 6(7) of the Labour Court Rules); (d) Costs on the attorney-and-own-client scale in light of the Respondent's egregious and mala fide conduct; (e) Such further and/or alternative relief as this Honourable Court deems just.

12.4 Structured Payment and Tax Treatment Order

STATUTORY BASIS: Income Tax Act 58 of 1962 ss 1, 10(1)(gC), 10(1)(x) — Tax treatment of damages / LRA s194(3) — Nature of compensation awards —
South African courts and SARS distinguish between patrimonial loss (taxable as gross income) and non-patrimonial loss — being compensation for pain, suffering, injury to dignity, and psychological harm — which does not constitute 'gross income' under the Income Tax Act and is accordingly not subject to income tax or PAYE. The Court has jurisdiction to direct the characterisation of components of its award to reflect their true legal nature.

The Applicant respectfully requests that this Honourable Court, in granting the monetary relief set out in paragraph 12.2 above, direct the following structured payment and tax treatment framework, each component reflecting the true legal character of the relief awarded and consistent with the applicable provisions of the Income Tax Act 58 of 1962:

STATUTORY BASIS: Income Tax Act s10(1)(gC) — Exemption for non-patrimonial damages / EEA s50(2) — Solatium for injury to dignity —
Compensation awarded for injury to dignity, psychological harm, and pain and

suffering constitutes non-patrimonial loss and falls outside the definition of 'gross income' in terms of section 1 of the Income Tax Act. Such amounts are exempt from income tax and PAYE deduction.

12.4.1 COMPONENT 1 — NON-PATRIMONIAL DAMAGES (R2,000,000.00):

The Court is requested to direct that the following components of the award, totalling R2,000,000.00, be characterised and paid as general damages for non-patrimonial loss — specifically for pain and suffering, injury to dignity, and psychological harm — and that no PAYE deduction be made in respect thereof:

- (a) Constitutional Damages (dignity, psychological integrity): R250,000.00
- (b) Aggravated Damages — Defamation and Emotional Distress: R200,000.00
- (c) EEA Solatium — Gender Identity Discrimination: R350,000.00
- (d) EEA Solatium — Disability Discrimination: R350,000.00
- (e) Psychological harm, PTSD exacerbation, reputational destruction: R850,000.00

The Applicant submits that these amounts are validated by, inter alia, the SAHRC acknowledgement of the human rights violations disclosed (Annexure REG5), the psychiatric reports of Dr. Jacques Malan (Annexure MED1), and the defamatory sworn affidavit of 10 December 2025 (Annexure OA1). Payment of these amounts as non-patrimonial damages is consistent with established South African tax law and should not attract PAYE.

STATUTORY BASIS: Income Tax Act s10(1)(x) — Capital receipts / Compensation for permanent destruction of earning capacity — *Where a payment is made to replace a capital asset — in this case the permanent destruction of a professional career and NQF 8 qualification pathway — rather than to replace lost income, the receipt may constitute a capital receipt outside the ambit of gross income. The distinction between revenue and capital in South African tax law turns on whether the payment replaces a 'fixed capital asset' (here, professional earning capacity) or a 'circulating asset' (income stream).*

12.4.2 COMPONENT 2 — CAPITAL PAYMENT FOR PERMANENT DESTRUCTION OF EARNING CAPACITY (R6,600,000.00):

The Court is requested to direct that the award of R6,600,000.00 for future loss of earnings and career destruction be characterised as a capital payment for the permanent and irreversible destruction of the Applicant's professional asset — his NQF 8 nursing career pathway and specialist clinical standing — rather than as compensation for lost remuneration. The grounds for this characterisation are:

- (a) The Respondent's conduct caused the Applicant's deregistration from SANC, permanently extinguishing his ability to practise as a registered nurse — a permanent destruction of a professional capital asset, not a temporary interruption of income (Annexure SANC2).

(b) The Applicant had been accepted for the 2026 PGDip Occupational Health Nursing (Annexure CPUT1), representing an established upward career trajectory permanently foreclosed by the Respondent's conduct.

(c) The award therefore replaces the permanent loss of a future right to a specialist career income stream — a fixed capital asset — not past wages or salary. This characterisation is consistent with the principles applied in Commissioner for Inland Revenue v Butcher Brothers (Pty) Ltd 1945 AD 301 and subsequent capital/revenue distinction jurisprudence.

STATUTORY BASIS: Income Tax Act s11(c) — Deductibility of legal costs / Principle of indemnification — reimbursement of expenses is not gross income — *A payment made by way of indemnification or reimbursement of actual costs incurred does not constitute gross income in the hands of the recipient. Where the Court orders the Respondent to pay the Applicant's regulatory filing and administrative costs as a direct indemnity, such payment is a reimbursement of expenditure — not remuneration — and should not be subject to PAYE.*

12.4.3 COMPONENT 3 — DIRECT INDEMNITY FOR REGULATORY AND ADMINISTRATIVE COSTS (R700,000.00):

The Court is requested to order that the Respondent pay to the Applicant the sum of R700,000.00 as a direct indemnity for regulatory filing costs, administrative expenses, and costs incurred in the preparation and filing of the Applicant's dossier to the JSE, FSCA, SAHRC, CMS, B-BBEE Commission, and DEL (Annexures REG1-REG6). The order should expressly state: 'The Respondent shall indemnify the Applicant for regulatory and administrative costs totalling R700,000.00, such payment constituting reimbursement of expenses and not remuneration, and shall accordingly not be subject to PAYE deduction or employee tax withholding.'

STATUTORY BASIS: Income Tax Act s89A — SARS Tax Directive / Fourth Schedule paragraph 9 — Employer's obligation to obtain directive — *Where a lump sum or settlement payment is made to a current or former employee, the employer is obliged to apply to SARS for a tax directive before making payment, to establish the correct rate of tax applicable. An employer who deducts PAYE at the standard rate without obtaining a directive, where a lower rate or exemption is applicable, acts in breach of its obligations and prejudices the employee.*

12.4.4 COMPONENT 4 — SARS TAX DIRECTIVE (MANDATORY CONDITION PRECEDENT):

The Court is requested to direct, as a condition of payment of the monetary award, that the Respondent be obliged to apply to the South African Revenue Service for a formal Tax Directive in respect of each component of the award prior to effecting payment, specifying the characterisation of each component as directed by this Court. The order should provide as follows:

(a) The Respondent shall, within 10 (ten) business days of the grant of this order, apply to SARS for a Tax Directive in respect of the total award, categorising each component in accordance with paragraphs 12.4.1 to 12.4.3 above.

(b) Payment of the award shall be conditional upon receipt of the SARS Tax Directive and shall be made strictly in accordance with the rates and categories confirmed therein — the Respondent is expressly prohibited from applying the standard PAYE rate of 45% to components characterised as non-patrimonial damages or capital receipts.

(c) In the event the Respondent fails to apply for a Tax Directive within the stipulated period, the Applicant shall be entitled to apply directly to SARS for a ruling, and the cost of any resulting adverse tax consequence arising from the Respondent's failure shall be borne exclusively by the Respondent.

(d) The Respondent shall provide the Applicant with a copy of the SARS Tax Directive application and confirmation within 3 (three) business days of receipt.

The Applicant submits that this directive is necessary to prevent the Respondent's payroll department from applying a blanket 45% PAYE deduction to the entirety of the award, which would deprive the Applicant of approximately R3,908,165.00 in net proceeds — an outcome that would perpetuate the financial destruction already caused by the Respondent's unlawful conduct and defeat the remedial purpose of the award.

13. VERIFICATION

13.1 I verify that the facts contained in this affidavit are true and correct to the best of my knowledge and belief.

13.2 I confirm that the annexures referred to herein are true copies of original documents in my possession.

13.3 I understand that any false statement in this affidavit may render me liable to prosecution for perjury.

THUS SWORN TO AND AFFIRMED before me at Cape Town on this _____ day of _____ 2026.

DEPONENT / THE APPLICANT: WILBUR WILLIAM MATTHEE

BEFORE ME:

Commissioner of Oaths: _____

Full Names: _____

Business Address: _____

Contact Number: _____

Date of Expiry of Commission: _____